

2011 04 11 Study Session

LAKESWOOD CITY COUNCIL STUDY SESSION MINUTES

Monday, April 11, 2011
City of Lakewood
City Council Chambers
6000 Main Street SW
Lakewood, WA 98499

CALL TO ORDER

Mayor Richardson called the meeting to order at 7:02 p.m.

ROLL CALL

Councilmembers Present: 5 – Mayor Douglas Richardson; Deputy Mayor Don Anderson; Councilmembers Mary Moss, Jason Whalen, and Walter Neary.

Councilmember Excused: 2 – Councilmembers Mike Brandstetter and Claudia Thomas (arrived at 7:50 p.m.).

ITEMS FOR DISCUSSION:

Review of aggressive begging ordinance.

Assistant City Attorney Booker-Hay reviewed the proposed amendments to the aggressive begging ordinance. She explained that the proposed amendments would expand the definition of begging and aggressive begging and define its restrictions on time, place and the manner of such begging.

Discussion ensued on the level of restrictiveness for aggressive begging; providing the language of the ordinance on this issue and the next two agenda items for Council review; when would the public see the draft ordinances; what about the history of aggressive begging when in vehicles; what is the cost for processing such citations; and having the ordinance address protection for vulnerable older adults and minors.

Speaking before the Council were:

Mon Wig, Bellevue resident, owner of Lakewood Pavilion, spoke about the seriousness of begging at Lakewood businesses. He provided examples of such aggressive begging and its impacts on business tenants. He encouraged that the ordinance provide for strong language that also includes business areas and not just at areas such as ATMs and bus stations.

Dennis Haugen, Lakewood resident, spoke about Lakewood's dangerous community and how gangs and cartels can thrive in Lakewood because of Lakewood's "entitlement" mentality.

Further discussion ensued on what City ordinance enforce pop-up vendors outside of business stores; what is the definition of criminal trespass; have there been numerous begging complaints from businesses; testing the limits of an aggressive begging ordinance and imposing an escalating provision; researching Municipal Research Services Center for ordinances that may be more restrictive and including language about begging when one feels intimidated for being asked.

Review of graffiti ordinance.

Lt. Steve Mauer and Assistant City Attorney Mike Savage reviewed the process and amendments to the removal of graffiti and associated penalties.

Discussion ensued on the penalty if someone was caught in the act; where are most of the activities taking place (McChord gate area and Woodbrook area); graffiti on the Hill Ward area; concerns about notices to the owner and what the timeframes are for removal of graffiti and to ensure that the notice is provided to the property owner.

Councilmember Thomas arrived at 7:50 p.m.

Further discussion ensued on whether this item was discussed with the Public Safety Advisory Committee; how difficult has it been to have graffiti removed by property owners and those in financial hardship; are graffiti on trains and train properties addressed in the ordinance.

Speaking before the Council was:

Dennis Haugen, Lakewood resident, spoke about laws that punish victims and how the criminal gets off, and using technology (cell phone cameras) to take pictures and sending it to the Police Department.

Ken Severe, Lakewood resident, expressed concern about punishing the victims to clean up graffiti and leaving restitution out of the ordinance. He then donated a Hawthorne tree in recognition of Parks Appreciation Day.

Review of shopping cart ordinance.

Assistant City Manager Bugher reviewed the shopping cart concerns in Lakewood and complaints that the City has received. He then provided an overview of the amendments for regulating shopping carts.

Discussion ensued about shopping carts in the Towne Center being taken out and left at Transit bus stations; and discussing the proposed ordinance with business retailers.

Speaking before the Council was:

Dennis Haugen, Lakewood resident, spoke about proving the ownership of the shopping cart instead of burdening the victims.

Ken Severe, Lakewood resident, spoke about how carts are handled in Baltimore and that most of the stores there have steel posts in the curb so carts cannot be taken out.

Further discussion ensued on areas at the Transit stations for collecting carts.

BRIEFING BY THE CITY MANAGER

City Manager Neiditz announced that a public forum on community gardens is scheduled for April 12, 2011. Secondly, the Joint Citizens Advisory Board and Committees meeting to discuss JBLM coordination is scheduled for April 20, 2011 hosted by the Planning Advisory Board.

City Manager Neiditz requested a closed session to discuss labor contract issues.

ITEMS TENTATIVELY SCHEDULED FOR THE APRIL 18, 2011 REGULAR CITY COUNCIL MEETING:

1. Item Nos. 1-2 above.
2. This is the date set for a public hearing by the City Council on the Fiscal Year 2011 Consolidated Plan and amendments to the Fiscal Years 2008, 2009 and 2010 Annual Action Plans and the proposed use of funds.
3. Awarding a bid for the acquisition of LED signal displays. – (Motion – Regular Agenda)
4. Approving the hire of temporary engineering technicians. – (Motion – Regular Agenda)

CITY COUNCIL COMMENTS

Councilmember Thomas announced that the Human Service Collaboration meeting will be held on Wednesday, April 13, 2011 at 9:30 a.m. in the Council Chambers. She also asked the Council to think about youths to serve on the Youth Council.

She then provided an update on the Sound Transit's progress and noted that Lakewood's station is scheduled to open in September 2012.

Councilmember Neary commented on a meeting he attended in Tillicum relative to the Camp Murray gate relocation.

Councilmember Whalen commented on email communication between the Arts Commission and Public Works relative to the Bridgeport Way / Walmart Gateway and asked for an update on what improvements will be taking place.

Mayor Richardson announced that Parks Appreciation Day is scheduled for April 16, 2011.

Mayor Richardson indicated that the Merchant Marine flag dedication is scheduled for presentation at the June 6, 2011 Council meeting and suggested inviting the President of the Merchant Marines.

Mayor Richardson announced that Council will recess into a closed session to discuss employee relations pursuant to RCW 42.30.140(4).

ADJOURNMENT

There being no further business, the meeting adjourned at 8:45 p.m.

DOUGLAS G. RICHARDSON, MAYOR

ATTEST:

ALICE M. BUSH, MMC
CITY CLERK